



General Assembly

Substitute Bill No. 5564

February Session, 2026



***AN ACT CONCERNING VICTIM STATEMENTS AND REQUIREMENTS
FOR VICTIM NOTIFICATION.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 54-91c of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) For the purposes of this section, "victim" means a person who is a
4 victim of a crime, the legal representative of such person, a member of a
5 deceased victim's immediate family or a person designated by a
6 deceased victim in accordance with section 1-56r.

7 (b) (1) (A) Prior to any proceedings involving the dismissal of a
8 charge against any defendant or the entry of a nolle prosequi to a charge
9 for any offense described in subdivision (2) of this subsection against a
10 defendant, or (B) prior to the imposition of sentence upon any defendant
11 who has been found guilty of any crime or has pleaded guilty or nolo
12 contendere to any crime, and prior to the acceptance by the court of a
13 plea of guilty or nolo contendere made pursuant to a plea agreement
14 with the state, the court shall permit any victim of the crime to appear
15 before the court for the purpose of making a statement for the record,
16 which statement may include the victim's opinion [of] concerning the
17 dismissal of a charge against any defendant or the entry of a nolle
18 prosequi to a charge for any offense described in subdivision (2) of this

19 subsection against a defendant or any plea agreement. In lieu of such
20 appearance, the victim may submit a written statement or, if the victim
21 of the crime is deceased, the legal representative or a member of the
22 immediate family of such deceased victim may submit a statement of
23 such deceased victim to the state's attorney, assistant state's attorney or
24 deputy assistant state's attorney in charge of the case. Such state's
25 attorney, assistant state's attorney or deputy assistant state's attorney
26 shall file the statement with the sentencing court and the statement shall
27 be made a part of the record at the sentencing hearing. Any such
28 statement, whether oral or written, shall relate to the facts of the case,
29 the appropriateness of any penalty and the extent of any injuries,
30 financial losses and loss of earnings directly resulting from the crime for
31 which the defendant is being sentenced. The court shall inquire on the
32 record whether any victim is present for the purpose of making an oral
33 statement or has submitted a written statement. If no victim is present
34 and no such written statement has been submitted, the court shall
35 inquire on the record whether an attempt has been made to notify any
36 such victim as provided in subdivision (1) of subsection (c) of this
37 section or, if the defendant was originally charged with a violation of
38 section 53a-167c for assaulting a peace officer, whether the peace officer
39 has been personally notified as provided in subdivision (2) of subsection
40 (c) of this section. After consideration of any such statements, the court
41 may refuse to accept, where appropriate, a negotiated plea or sentence,
42 and the court shall give the defendant an opportunity to enter a new
43 plea and to elect trial by jury or by the court.

44 (2) The following are offenses for which the court, pursuant to
45 subdivision (1) of this subsection, shall permit any victim of a crime to
46 appear before the court for the purpose of making a statement for the
47 record concerning the dismissal of a charge against a defendant or the
48 entry of a nolle prosequi to a charge against a defendant:

49 (A) A class A, B or C felony offense or an unclassified felony offense
50 for which a term of imprisonment may be five years or more;

51 (B) A class D felony offense that is a violation of section 53a-60a, 53a-

52 60b, 53a-60c, 53a-64bb, 53a-72a, 53a-90a, 53a-103a, 53a-181c, 53a-189c,
53 53a-191, 53a-196, 53a-196f, 53a-211, 53a-216, 53a-217a, 53a-322, 54-251,
54 54-252, 54-253 or 54-254 or subdivision (1) of subsection (a) of section
55 53a-189a;

56 (C) A class A misdemeanor offense that is a violation of section 53a-
57 61a, 53a-64cc, 53a-189c or 53a-323; or

58 (D) Any other offense that is (i) a nonviolent sexual offense or a
59 sexually violent offense, each as defined in section 54-250, or (ii)
60 designated as a family violence crime, as defined in section 46b-38a.

61 (c) (1) Except as provided in subdivision (2) of this subsection, prior
62 to the imposition of sentence upon such defendant and prior to the
63 acceptance of a plea pursuant to a plea agreement, the state's attorney,
64 assistant state's attorney or deputy assistant state's attorney in charge of
65 the case shall notify the victim of such crime of the date, time and place
66 of the original sentencing hearing or any judicial proceeding concerning
67 the acceptance of a plea pursuant to a plea agreement, provided the
68 victim has informed such state's attorney, assistant state's attorney or
69 deputy assistant state's attorney that such victim wishes to make or
70 submit a statement as provided in subsection (b) of this section and [has
71 complied with a request from such state's attorney, assistant state's
72 attorney or deputy assistant state's attorney to submit a stamped, self-
73 addressed postcard for the purpose of such notification] such victim has
74 provided the state's attorney, assistant state's attorney, deputy assistant
75 state's attorney or the Office of Victim Services with up-to-date contact
76 information.

77 (2) Prior to the imposition of sentence upon a defendant originally
78 charged with a violation of section 53a-167c for assaulting a peace
79 officer, and prior to the acceptance of a plea pursuant to a plea
80 agreement, the state's attorney, assistant state's attorney or deputy
81 assistant state's attorney in charge of the case shall personally notify the
82 peace officer who was the victim of such crime of the date, time and
83 place of the original sentencing hearing or any judicial proceeding

84 concerning the acceptance of a plea pursuant to a plea agreement.

85 (3) If the state's attorney, assistant state's attorney or deputy assistant
86 state's attorney is unable to notify the victim, such state's attorney,
87 assistant state's attorney or deputy state's attorney shall sign a statement
88 as to such notification.

89 (d) Upon the request of a victim, prior to the acceptance by the court
90 of a plea of a defendant pursuant to a proposed plea agreement, the
91 state's attorney, assistant state's attorney or deputy assistant state's
92 attorney in charge of the case shall provide such victim with the terms
93 of such proposed plea agreement in writing. If the terms of the proposed
94 plea agreement provide for a term of imprisonment which is more than
95 two years or a total effective sentence of more than a two-year term of
96 imprisonment, the state's attorney, assistant state's attorney or deputy
97 assistant state's attorney in charge of the case shall indicate: (1) The
98 maximum period of imprisonment that may apply to the defendant; (2)
99 whether the defendant may be eligible to earn risk reduction credits
100 pursuant to section 18-98e; (3) whether the defendant may be eligible to
101 apply for release on parole pursuant to section 54-125a; and (4) whether
102 the defendant may be eligible for automatic erasure of such defendant's
103 criminal conviction pursuant to subsection (e) of section 54-142a.

104 (e) The provisions of this section shall not apply to any proceedings
105 held in accordance with section 46b-121 or section 54-76h.

106 Sec. 2. Section 54-203 of the 2026 supplement to the general statutes
107 is repealed and the following is substituted in lieu thereof (*Effective*
108 *October 1, 2026*):

109 (a) There is established an Office of Victim Services within the Judicial
110 Department.

111 (b) The Office of Victim Services shall have the following powers and
112 duties:

113 (1) To direct each hospital, whether public or private, each university

114 or college health services center, whether public or private, and each
115 community health center, as defined in section 19a-490a, to prominently
116 display posters in a conspicuous location giving notice of the availability
117 of compensation and assistance to victims of crime or their dependents
118 pursuant to sections 54-201 to 54-218, inclusive, and to direct every law
119 enforcement agency of the state to inform victims of crime or their
120 dependents of their rights pursuant to sections 54-201 to 54-218,
121 inclusive;

122 (2) To obtain from the office of the state's attorney, state police, local
123 police departments or any law enforcement agency such investigation
124 and data as will enable the Office of Victim Services to determine if in
125 fact the applicant was a victim of a crime or attempted crime and the
126 extent, if any, to which the victim or claimant was responsible for his
127 own injury, including, but not limited to, a request for information form
128 promulgated by the Office of Victim Services;

129 (3) To request from the Department of Correction, other units of the
130 Judicial Branch and the Board of Pardons and Paroles such information
131 as will enable the Office of Victim Services to determine if in fact a
132 person who has requested notification pursuant to section 54-228 was a
133 victim of a crime;

134 (4) To take or cause to be taken affidavits or depositions within or
135 without the state;

136 (5) To apply for, receive, allocate, disburse and account for grants of
137 funds made available by the United States, by the state, foundations,
138 corporations and other businesses, agencies or individuals to implement
139 a program for victim services which shall assist witnesses and victims
140 of crimes as the Office of Victim Services deems appropriate within the
141 resources available and to coordinate services to victims by state and
142 community-based agencies, with priority given to victims of violent
143 crimes, by (A) assigning such victim advocates as are necessary to
144 provide assistance; (B) administering victim service programs; and (C)
145 awarding grants or purchase of service contracts to private nonprofit

146 organizations or local units of government for the direct delivery of
147 services, except that the provision of training and technical assistance of
148 victim service providers and the development and implementation of
149 public education campaigns may be provided by private nonprofit or
150 for-profit organizations or local units of government. Such grants and
151 contracts shall be the predominant method by which the Office of
152 Victim Services shall develop, implement and operate direct service
153 programs and provide training and technical assistance to victim service
154 providers;

155 (6) To provide each person who applies for compensation pursuant
156 to section 54-204, within ten days of the date of receipt of such
157 application, with a written list of rights of victims of crime involving
158 personal injury and the programs available in this state to assist such
159 victims, and the document developed pursuant to subdivision (16) of
160 this subsection. The Office of Victim Services, the state or any agent,
161 employee or officer thereof shall not be liable for the failure to supply
162 such list or any alleged inadequacies of such list. [Such list] The list
163 developed pursuant to this subdivision shall include, but not be limited
164 to:

165 (A) Subject to the provisions of sections 18-81e and 51-286e, the victim
166 shall have the right to be informed concerning the status of his or her
167 case and to be informed of the release from custody of the defendant;

168 (B) Subject to the provisions of section 54-91c, as amended by this act,
169 the victim shall have the right to present a statement of his or her losses,
170 injuries and wishes to the prosecutor and the court prior to the
171 acceptance by the court of a plea of guilty or nolo contendere made
172 pursuant to a plea agreement with the state;

173 (C) Subject to the provisions of section 54-91c, as amended by this act,
174 prior to the imposition of sentence upon the defendant, the victim shall
175 have the right to submit a statement to the prosecutor as to the extent of
176 any injuries, financial losses and loss of earnings directly resulting from
177 the crime. Upon receipt of the statement, the prosecutor shall file the

178 statement with the sentencing court and the statement shall be made a
179 part of the record and considered by the court at the sentencing hearing;

180 (D) Subject to the provisions of section 54-126a, the victim shall have
181 the right to appear before a panel of the Board of Pardons and Paroles
182 and make a statement as to whether the defendant should be released
183 on parole and any terms or conditions to be imposed upon any such
184 release;

185 (E) Subject to the provisions of section 54-36a, the victim shall have
186 the right to have any property the victim owns which was seized by
187 police in connection with an arrest to be returned;

188 (F) Subject to the provisions of sections 54-56e and 54-142c, the victim
189 shall have the right to be notified of the application by the defendant for
190 the pretrial program for accelerated rehabilitation and to obtain from
191 the court information as to whether the criminal prosecution in the case
192 has been dismissed;

193 (G) Subject to the provisions of section 54-85b, the victim cannot be
194 fired, harassed or otherwise retaliated against by an employer for
195 appearing under a subpoena as a witness in any criminal prosecution;

196 (H) Subject to the provisions of section 54-86g, the parent or legal
197 guardian of a child twelve years of age or younger who is a victim of
198 child abuse or sexual assault may request special procedural
199 considerations to be taken during the testimony of the child;

200 (I) Subject to the provisions of section 46b-15, the victim of assault by
201 a spouse or former spouse, family or household member has the right
202 to request the arrest of the offender, request a protective order and apply
203 for a restraining order;

204 (J) Subject to the provisions of sections 52-146k, 54-86e and 54-86f, the
205 victim of sexual assault or domestic violence can expect certain records
206 to remain confidential; and

207 (K) Subject to the provisions of section 53a-32, the victim and any

208 victim advocate assigned to assist the victim may receive notification
209 from a probation officer whenever the officer has notified a police officer
210 that the probation officer has probable cause to believe that the offender
211 has violated a condition of such offender's probation;

212 (7) Within available appropriations, to maintain a victim's assistance
213 center which shall (A) make available to victims information regarding
214 victim's rights and available services, (B) maintain a victims' notification
215 system pursuant to sections 54-227 to 54-230a, inclusive, and 54-235, and
216 (C) maintain a toll-free number for access to information regarding
217 victims' rights and available services;

218 (8) To provide a telephone helpline that shall provide information on
219 referrals for various services for victims of crime and their families;

220 (9) To provide staff services to a state advisory council. The council
221 shall consist of not more than twenty members to be appointed by the
222 Chief Justice and shall include the Chief Victim Compensation
223 Commissioner and members who represent victim populations,
224 including but not limited to, homicide survivors, family violence
225 victims, sexual assault victims, victims of gun violence, victims of drunk
226 drivers, and assault and robbery victims, and members who represent
227 the judicial branch and executive branch agencies involved with victims
228 of crime. The members shall serve for terms of four years. Any vacancy
229 in the membership shall be filled by the appointing authority for the
230 balance of the unexpired term. The members shall receive no
231 compensation for their services. The council shall meet at least four
232 times a year. The council shall recommend to the Office of Victim
233 Services program, legislative or other matters which would improve
234 services to victims of crime and develop and coordinate needs
235 assessments for both court-based and community-based victim services.
236 The Chief Justice shall appoint two members to serve as cochairpersons.
237 Not later than December fifteenth of each year, the council shall report
238 the results of its findings and activities to the Chief Court Administrator;

239 (10) To utilize such voluntary and uncompensated services of private

240 individuals, agencies and organizations as may from time to time be
241 offered and needed;

242 (11) To recommend policies and make recommendations to agencies
243 and officers of the state and local subdivisions of government relative to
244 victims of crime;

245 (12) To provide support and assistance to state-wide victim services
246 coalitions and groups;

247 (13) To provide a training program for judges, prosecutors, police,
248 probation and parole personnel, bail commissioners, intake, assessment
249 and referral specialists, officers from the Department of Correction and
250 judicial marshals to inform them of victims' rights and available
251 services;

252 (14) To (A) maintain, within available appropriations, a sexual assault
253 forensic examiners program that will train and make available sexual
254 assault forensic examiners to adolescent and adult victims of sexual
255 assault who are patients at participating health care facilities. In order
256 to maintain such program, the Office of Victim Services may apply for,
257 receive, allocate, disburse and account for grants of funds made
258 available by the United States, the state, foundations, corporations and
259 other businesses, agencies or individuals; or (B) establish, within
260 available appropriations, a training program for health care
261 professionals on the care of and collection of evidence from adolescent
262 and adult victims of sexual assault;

263 (15) To provide victims of crime and the general public with
264 information detailing the process by which a victim may register to
265 receive notices of hearings of the Board of Pardons and Paroles; [and]

266 (16) To provide victims of crime and the general public with a concise
267 informational document written in manner that is easily understandable
268 in English and in any other language, as determined by the Office of
269 Victim Services, and available in printed form, upon request, and on the
270 Internet web site of the Judicial Branch, that is updated as said office

271 determines is necessary, and includes, at a minimum: (A) A summary
272 of the constitutional and statutory rights afforded to crime victims in
273 this state; (B) an explanation of the manner in which a victim may
274 exercise and participate in the criminal justice process; and (C) a general
275 overview of what a victim may expect throughout the criminal justice
276 process; and

277 [(16)] (17) To submit to the joint standing committee of the General
278 Assembly having cognizance of matters relating to the judiciary, in
279 accordance with the provisions of section 11-4a, on or before January 15,
280 2000, and biennially thereafter a report of its activities under sections 54-
281 201 to 54-235, inclusive.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	54-91c
Sec. 2	October 1, 2026	54-203

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Sec. 2	October 1, 2026	54-203

JUD *Joint Favorable Subst.*